

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 21, 2026, AT 8:30 A.M.**

13. S-CV-0055740 LEGRAND, BRIAN v. LEGRAND, KAREN

The motion for protective order is dropped from calendar as no moving papers were filed with the court.

14. S-CV-0055852 VILLACARA, ADAM v. TARAS, CURT

This tentative ruling is issued by the **Honorable Michael A. Jacques**. If oral argument is requested, it shall be heard on **May 21, 2026, at 8:30 a.m. in Department 40**.

Petitioner's Motion for Prevailing Party Attorney Fees

Petitioner moves for an award of attorney's fees in the amount of \$11,508.50 plus costs in the amount of \$643.78.

Code of Civil Procedure section 527.6, subdivision (s) provides "the prevailing party in an action brought pursuant to this section may be awarded court costs and attorney's fees, if any." (Code Civ. Proc., § 527.6, subd. (s).) In other words, whether to award attorney's fees to the prevailing party rests in the sound discretion of the trial court. (*Krug v. Maschmeier* (2009) 172 Cal.App.4th 796, 802.)

Here, the court exercises its discretion and denies petitioner's request for attorney's fees. A review of the record reveals respondent filed a response that confirmed he would not contact petitioner or petitioner's family, tried to settle the matter but was rejected, and did not appear at any of the civil harassment order to show cause hearings. The court finds the uncontested nature of the matter does not warrant an imposition of attorney's fees and costs.

15. S-CV-0056156 WILT, ANGELA v. U-HAUL CO. OF CALIFORNIA

Defendant's Motion to Compel Arbitration and Stay Proceedings

Preliminary Matters

The court notes plaintiff's opposition exceeds the page limits imposed by California Rules of Court, Rule 3.1113, subdivision (d) by more than 10 pages. The court admonishes plaintiff that future pleadings must adhere to the page limits imposed by California Rules of Court, Rule 3.1113, subdivision (d).

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Ruling on Motion

Defendant moves to compel plaintiff's claims to arbitration and stay the proceedings pending resolution of arbitration.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)

A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then "bears the burden of proving by a preponderance of the evidence any fact necessary to its defense" including evidence challenging the acceptance of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the opposing party meets its burden of production, then the moving party must establish with admissible evidence a valid arbitration agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–66.) "[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit." (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant meets its initial burden to prove the existence of a valid arbitration agreement between the parties. (Clark Dec'l, Exs. B–C.)

The arbitration agreement here applies to "any dispute, complaint, controversy, or cause of action arising out of or relating to your relationship with U-Haul or any

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prior, current or future Transaction with U-Haul. All claims, including assigned claims, brought under any legal theory, whether at law or in equity, are covered by this Agreement and shall include, but not be limited to, all statutory and tort claims, that may be asserted. ”

Plaintiff contends the arbitration agreements is unconscionable. To establish the defense of unconscionability, both procedural and substantive unconscionability must be shown. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.) However, courts evaluate unconscionability on a sliding scale whereby a greater showing of procedural unconscionability requires a lesser showing of procedural unconscionability and vice versa. (*Ibid.*)

Courts determine whether an arbitration agreement is procedurally unconscionable first by determining whether the contract is one of adhesion. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) If a contract is one of adhesion, then it contains “some degree of procedural unconscionability and requires [the court] to scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided.” (*Fisher v. MoneyGram Intern., Inc.* (2021) 66 Cal.App.5th 1084, 1095.)

Substantive unconscionability, on the other hand, looks at the fairness of a contract’s terms. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 129.) Terms of a contract are substantively unconscionable if they “impair the integrity of the bargaining process or otherwise contravene the public interest or public policy or attempt to impermissibly alter fundamental legal duties.” (*Id.* at 130 [internal quotation marks omitted].)

First, plaintiff establishes a modicum of procedural unconscionability because the arbitration agreement is one of adhesion. (*Roman v. Superior Court* (2009) 172 Cal.App.4th 1462, 1470.) However, plaintiff’s other arguments regarding procedural unconscionability are unpersuasive.

Plaintiff, however, does not meet her burden to establish the arbitration agreement is substantively unconscionable. Arbitration agreements may apply “retroactively to transactions which occurred prior to execution of the arbitration agreement.” (*Salgado v. Carrows Restaurants, Inc.* (2019) 33 Cal.App.5th 356, 361.) This occurred here.

Based on the foregoing, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant’s motion to compel arbitration is granted. The

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action shall be stayed pending completion of the arbitration. The court schedules this matter for an Order to Show Cause re status of arbitration on **Friday, November 20, 2026, at 9:00 a.m. in Department 1.**

16. S-CV-0056174 ANDERSON, STEPHEN v. RUNGE, KRISTINA

Plaintiff's Motion to Enforce Settlement

Plaintiff's motion to enforce settlement is denied because there is insufficient evidence the parties agreed pursuant to Code of Civil Procedure section 664.6 for the court to retain jurisdiction to enforce the settlement after the action is dismissed. (Code Civ. Proc., § 664.6; *see generally* Anderson Dece'l.) Here, plaintiff dismissed the action with prejudice on February 25, 2026.

17. S-CV-0056958 HUYNH, TONY v. ARASHI TOWING

Plaintiff's Motion for Preliminary Injunction

Plaintiff moves for a preliminary injunction that enjoins defendant State of California Department of Motor Vehicles from transferring any right, title, or interest in or to the vehicle during the pendency of the action.

All moving papers must be served at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) This applies to motions for preliminary injunction. (*Id.* at § 527, subd. (a). The service timeline is extended depending upon the method of service. (*See generally id.* at § 1005.)

Here, there is no proof of service in the file demonstrating defendants have been served with the motion for preliminary injunction. Accordingly, plaintiff's motion for preliminary injunction is denied without prejudice.